

25STCV07252 25STCV07252

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-15

Motion: PLAINTIFF'S MOTION FOR SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS

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Case Number: 25STCV07252 Hearing Date: September 15, 2026 Dept: 733

SULIM

JI, an individual,

Plaintiff,

vs.

VOLKSWAGEN GROUP OF AMERICA, INC., a New
Jersey Corporation, and FLETCHER JONES MOTOR CARS, INC., a California
Corporation d/b/a AUDI BEVERLY HILLS, and DOES 1 through 10, inclusive,

Defendants.

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CASE NO.: 25STCV07252

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
FOR SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS

Dept. 733

8:30 a.m.

September 15, 2026

I.

INTRODUCTION

This
is a Song-Beverly action.

On March 13,
2025, Plaintiff Sulim Ji ("Plaintiff") filed a complaint against Volkswagen
Group of America, Inc. ("Volkswagen"), Fletcher Jones Motor Cars, Inc. dba Audi
Beverly Hills ("Fletcher") (collectively, "Defendants"), alleging causes of
action for (1) Breach of Express Warranty, (2) Breach of Implied Warranty, (3)
Violation of Song-Beverly Act Section 1793.2(b), and (4) Negligent
Repair.

On December 3, 2025, the Court granted Plaintiff's motion
to compel further discovery responses, and ordered Volkswagen to serve
verified, further code compliant responses Plaintiff's Request for Production
("RFPDs") without objection — except attorney client privilege/work product and
privacy — within twenty (20) days of the order ("December 2025 Order").

On March 26, 2026, the Court granted Plaintiff's motion

to compel compliance with the Court's December Order. The Court ordered Volkswagen to provide verified, further code compliant responses Plaintiff's RFPDs without objection — except attorney client privilege/work product and privacy — within twenty (30) days of notice of this order ("March 2026 Order").

On April 29, 2026, Plaintiff filed the instant motion for sanctions.

On September 1, 2026, Volkswagen filed an opposition.

No reply was filed.

II.

LEGAL STANDARD

If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc., § 2025.450(h) (depositions); § 2030.290(c) (interrogatories); § 2031.300(c) (demands for production of documents); § 2033.290(e) (requests for admission).) Code of Civil Procedure section 2023.030 provides that, "[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . . [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process" Code of Civil Procedure section 2023.010 provides that "[m]isuses of the discovery process include, but are not limited to, the following: . . . (d) Failing to respond or to submit to an authorized method of discovery. . . . (g) Disobeying a court order to provide discovery. . . ."

"A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) When deciding whether to impose terminating sanctions, courts generally weigh three factors: (1) whether the party subject to the sanction acted willfully, (2) the detriment to the party seeking discovery, and (3) the number of formal and

informal unsuccessful attempts to obtain discovery. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Nonmonetary sanctions require evidence of willful violations of discovery orders or a history of egregious abuses of discovery. (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486.) A prerequisite to the imposition of nonmonetary sanctions is willful disobedience of a court order. (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403.) By requiring a violation of a discovery order before imposing nonmonetary sanctions, California courts can be sure that the offending party does not intend to comply with the discovery request. (Ruvalcaba v. Government Employees Insurance Co. (1990) 222 Cal.App.3d 1579, 1581.) "[A] terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified." (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615.)

"Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders." (Id. at 390 [citing Lang, supra, 77 Cal.App.4th at 1244-1246 [discussing cases]; see, e.g., Collisson & Kaplan v. Hartunian (1994) 21 Cal. App. 4th 1611, 1617-1622 [terminating sanctions imposed after defendants failed to comply with one court order to produce discovery]; Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal. App. 3d 481, 491, disapproved on other grounds in Garcia v. McCutchen (1997) 16 Cal. 4th 469, 478, n.4 [terminating sanctions imposed against plaintiff for failing to comply with a discovery order and for violating various discovery statutes].)¿

III.

DISCUSSION

a.

Terminating Sanctions

Plaintiff moves for terminating sanctions, on the grounds that Volkswagen willfully

disobeyed the Court's December 2025 Orde and March 2026 order.

As stated above, on December 3, 2025, the Court granted Plaintiff's motion to compel further discovery responses, and ordered Volkswagen to serve verified, further code compliant responses Plaintiff's Request for Production ("RFPDs") without objection — except attorney client privilege/work product and privacy — within twenty (20) days of the order. Plaintiff then asserted that Volkswagen had failed to comply with this Order.

On March 26, 2026, the Court granted Plaintiff's motion to compel compliance and again ordered Volkswagen to serve verified, further code compliant responses Plaintiff's RFPDs without objection — except attorney client privilege/work product and privacy — within thirty (30) days of the order.

Now, Plaintiff provides that on April 28, 2026, he reached out to Volkswagen's counsel stating that Plaintiff has not received further code compliant responses, production of documents or a privilege log. (Hozven Decl., ¶ 15.) According to Plaintiff, Volkswagen served supplemental document production but has not served further code compliant responses Plaintiff's RFPDs. (Ibid.) However, in the email correspondence between the parties provided by Plaintiff, Volkswagen counsel communicates on two separate occasions that she served the document production but was still awaiting verification for the further responses. (Id., Ex. 4.)

On May 1, 2026, Volkswagen ultimately served further responses to the RFPDs, without objections other than privilege, in compliance with the Court's March 2026 Order. (Kim Decl., ¶ 7, Exs. A, B.)

The Court is not persuaded that terminating sanctions are appropriate at this time. Volkswagen has ultimately provided the responses and has sufficiently explained to this Court and to Plaintiff's counsel that the delay was merely waiting on the verifications. There is simply no evidence of willful disobedience or intentional attempt to evade discovery obligations.

b.

Monetary

Sanctions

Plaintiff further requests monetary sanctions in the amount of \$500 per day for each day of noncompliance with the Court's Orders, in the event Volkswagen has not served further responses by the time of the hearing on this motion. Given that Volkswagen has provided further responses in compliance with the Court's order prior to the hearing, the Court declines to impose monetary sanctions.

IV.

CONCLUSION

Based on the foregoing,

Plaintiff's motion for sanctions is DENIED in its entirety.

Dated this 15th day of September
2026

Hon. Gary D.
Roberts

Judge of the
Superior Court